

IN THE SUPREME COURT OF PAKISTAN
(Original/Appellate Jurisdiction)

Present:

Mr. Justice Iftikhar Muhammad Chaudhry, HCJ
Mr. Justice Khilji Arif Hussain
Mr. Justice Tariq Parvez

**CIVIL PETITION NO. 796 OF 2007 AND
CMA NO.4560 & 4561/2009 & CMA 116/2011.**

AND

CMA NO.403 & 406 OF 2012

Maulana Abdul Haq Baloch and 2 others	Petitioners
Versus	
Government of Balochistan and others	Respondents

CRL.MISC.A. NO. 8/2011 IN C.P. NO. 796/2007

Ehsanullah Waqas MPA Punjab	Applicant
Versus	
Tethyan Copper Co. and others	Respondents

CONST. P.NO. 68/2010

Muhammad Tariq, ASC	Petitioner
Versus	
Federal Government and others	Respondents

CONST. P.NO. 69/2010 AND CRL.O. P.NO.01/2011

Watan Party and another	Petitioners
Versus	
Federation of Pakistan	Respondent

CONST. P.NO. 01/2011

Qazi Sirajuddin Sanjrani and another	Petitioners
Versus	
Federal Government and others	Respondents

CONST. P.NO. 4/2011

Senator Muhammad Azam Khan Swati etc. Petitioners

Versus

Federal Government etc. Respondents

HUMAN RIGHTS CASE NO. 5377-P OF 2010.

(Application by Kh. Ahmed Tariq Rahim, ASC)

For the petitioners
(in CP 796/07)

Mr. Raza Kazim, Sr. ASC
Mr. Mahmood A. Sheikh, AOR

Petitioner
(in Const. P 68/10)

Mr. Tariq Asad, ASC in person

Petitioner
(in Const. P 69/10)

Barrister Zafarullah Khan, ASC

For the petitioners
(in Const. P 1/11)

Sabibzada Ahmed Raza Qasuri, Sr. ASC

For the petitioners
(in Const. P 4/11)

Nemo

For the respondents

For M/o Petroleum

Mr. Shafi Muhammad Chandio, DAG
Raja Abdul Ghafoor, AOR.
Mr. Irshad Ali Khokhar, DG.

Govt. of Balochistan

Mr. Amanullah Kanrani, AG (Blo).
Mr. Ahmer Bilal Soofi, ASC
Raja Abdul Ghafoor, AOR
Mr. Azhar Ghafar, Dy. Dir.

For Balochistan Development
Authority

Nemo.

For respondent No.6
(Const.P.68/10)

Nemo.

For respondent No.7
(Const. P 1/2011)

Raja Muqsit Nawaz Khan, ASC

For respondent No.4
(TCC) in Const.P 1/11)

Mr. Khalid Anwar, Sr. ASC

CP.796/2007

For respondent No.4
TCC, Ibid.

Fakhruddin G. Ebrahim, Sr.ASC
Mr. Mehr Khan Malik, AOR

For respondents No.5&7 Antofagasta Plc London Barrick Gold Corp. Canada	Barrister Sajid Zahid, ASC Mr. Arshad Ali Chaudhry, AOR
For respondent No.6 (Muslim Lakhani)	Mr. Khalid Anwar, Sr. ASC Mr. Mehr Khan Malik, AOR
For respondent No.8 (BHP Min. Expl. Ibd)	Mr. Abdul Hafeez Pirzada, Sr. ASC Mr. Arshad Ali Ch. AOR.
For State Bank of Pakistan	Qazi A. Naeem Qureshi, ASC (Absent)
For the applicant (CMA 3680&3687/10 & CMA No.151/11)	Malik Shakeel-ur-Rehman ASC (Absent)
For the applicant (CMA. 215/11)	Mr. M. Ikram Ch. ASC (Absent)
For the applicant (CMA 324/11)	Raja Abdul Rehman, ASC.
For the applicant (CMA.414/2011)	Mr. Saleem Khan, ASC (Absent) Ms. Afshan Ghazanfar, ASC (Absent)
Date of hearing	07.02.2012

ORDER

This matter was taken up on 02.02.2012, when an application was moved on behalf of petitioner by Mr. Raza Kazim, Sr. ASC, *inter alia*, with the prayer to initiate proceedings of contempt of Court against the respondents for the reasons mentioned in the application and in the meantime direct them not to take further steps in arbitration and instead withdraw the request of arbitration at the ICCA and ICSID, till this Court decides the matter on the legalities and validity of the joint venture agreements.

2. Mr. Khalid Anwar, Sr. ASC states that ‘TCCA’ is an independent body corporate, having no concern with instant proceedings.

3. Learned Advocate General Balochistan controvert this fact and made reference to alliance agreement between the BHP Minerals International Exploration Inc. and TCCA dated 03.04.2002, to substantiate that ‘TCCP’ and ‘TCCA’ are component of one company and that now ‘TCCA’ has approached ICC and ICSID for arbitration. To elaborate his

submission, he has made reference to the following title of the agreement dated 03.04.2002:-

“BETWEEN:

BHP MINERALS INTERNATIONAL EXPLORATION INC. a corporation of the State of Delaware, USA of Suite 500, 1360 Post Oak Blvd. Houston, Texas, USA

AND

TETHYAN COPPER COMPANY LIMITED ABN 24 093 519 692 of level 1, 1 Havelock Street, West Perth, Western Australia.”

4. It may be noted that subsequent thereto another innovation agreement dated 01.04.2006 was arrived at between Government of Balochistan, BHP Minerals International Exploration Inc. and Tethyan Copper Company Ltd., Australia. Title of the same is as under:-

“BETWEEN:

THE GOVERNOR OF BALOCHISTAN, for and on behalf of the Province of Balochistan, in the Islamic Republic of Pakistan (“GOB”) acting through its agent **THE BALOCHISTAN DEVELOPMENT AUTHORITY**, a statutory corporation created by and existing under the Balochistan Development Authority Act 1974 (“BDA”)

AND

BHP MINERALS INTERNATIONAL EXPLORATION INC. a corporation incorporated in Delaware of Suite 500, 1360 Post Oak Blvd. Houston, Texas, USA (“BHPB”)

AND

TETHYAN COPPER COMPANY LIMITED (ABN 24 093 519 692) a company incorporated in Australia of level 1, 1 Havelock Street, West Perth, Western Australia. (“TCC”)

5. Mr. Khalid Anwar, learned Sr. ASC, however, has opposed the grant of stay and contended that whatever status both the companies i.e. ‘TCCP’ or ‘TCCA’ may enjoy but ‘TCCA’ is not represented by any one of them and any order passed by this Court in this regard is likely to cause further legal complications domestically and internationally, as well.

6. We have heard both the sides and have considered the request so made by M/s Raza Kazim, Sr. ASC, Ahmer Bilal Sufi, ASC and Advocate General Balochistan and have taken into consideration the fact that the Government of Balochistan is being insisted for appointment of the Arbitrator; therefore, we direct to the Government of Balochistan as well as

Government of Pakistan to make a request to the ICC and ICSID Washington D.C. not to take further steps and extend the period for nomination of the Arbitrator, so that in the meantime this Court, which is already seized of the matter since the year 2007 and is hearing the petitions filed subsequently on the same subject under the Constitutional provisions, may dispose of the same finally.

Adjourned to a date in office after two weeks.

CJ.

J.

Islamabad,
07.02.2012.
Irshad Hussain /*

J.